

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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MAJESTY HERNANDEZ and BARRINGTON BARTON,

Plaintiffs

- against -

**THE CITY OF NEW YORK, POLICE OFFICER
MARC KAVY (Shield No. 12611), POLICE OFFICER
ANGEL VASQUEZ (Shield No. 885) and SERGEANT
OMAR PEREZ (Shield No. 1726),**

Defendants.

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 8, 2017



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiffs
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****MAJESTY HERNANDEZ and BARRINGTON BARTON,**

Plaintiffs

- against -

Index No. _____

VERIFIED COMPLAINT**THE CITY OF NEW YORK, POLICE OFFICER
MARC KAVY (Shield No. 12611), POLICE OFFICER
ANGEL VASQUEZ (Shield No. 885) and SERGEANT
OMAR PEREZ (Shield No. 1726),**

Defendants.

Plaintiffs, MAJESTY HERNANDEZ and BARRINGTON BARTON, by their attorney JEFFREY W. RIZZO, ESQ., principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff MAJESTY HERNANDEZ (hereinafter "MS. HERNANDEZ") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff BARRINGTON BARTON (hereinafter "MR. BARTON") was a resident of Bronx County, City and State of New York.
3. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, POLICE OFFICER MARC KAVY, (hereinafter "KAVY") was and still is a Police Officer/Detective employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD").

5. On and prior to September 9, 2016, KAVY was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

6. The actions of KAVY described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD.

7. At all times hereinafter mentioned, POLICE OFFICER ANGEL VASQUEZ, (hereinafter "VASQUEZ") was and still is a Police Officer/Detective employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD").

8. On and prior to September 9, 2016, VASQUEZ was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

9. The actions of VASQUEZ described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD.

10. At all times hereinafter mentioned, SERGEANT OMAR PEREZ, (hereinafter "PEREZ") was and still is a Police Officer/Detective employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD").

11. On and prior to September 9, 2016, PEREZ was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

12. The actions of PEREZ described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD.

BACKGROUND

13. On or about September 9, 2016, KAVY, VASQUEZ and PEREZ, acting as agents, servants and employees of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MS. HERNANDEZ and MR. BARTON of having committed the crimes of P.L. § 220.16 Criminal Possession of a Controlled Substance in the Third Degree and related charges.

14. On or about September 9, 2016, Defendants, their agents, servants and/or employees, intentionally placed MS. HERNANDEZ and MR. BARTON under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

15. On or about September 9, 2016, a criminal complaint was issued at the directive of Defendants, and a criminal action against MS. HERNANDEZ and MR. BARTON was commenced.

16. On or about September 9, 2016, MS. HERNANDEZ and MR. BARTON made a court appearance during which they were arraigned and released on their own recognizance.

17. MS. HERNANDEZ and MR. BARTON have been required to make numerous court appearances and continue to appear in Bronx County Criminal Court as the criminal charges are still pending.

18. As a result of the treatment of MS. HERNANDEZ and MR. BARTON by the Defendants, MS. HERNANDEZ and MR. BARTON were denied liberty by being falsely arrested and imprisoned for approximately eighteen (18) hours.

19. MS. HERNANDEZ and MR. BARTON suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for approximately eighteen (18) hours, MS. HERNANDEZ and MR. BARTON suffered humiliation, fear for their safety and other emotional distress.

PROCEDURAL POSTURE

20. On April 10, 2017, each Plaintiff served a Notice of Claim in writing sworn to on their behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

21. Further, Plaintiff filed an Order to Show Cause seeking permission to file a late Notice of Claim on November 17, 2017, which is scheduled to be heard on December 14, 2017.

22. More than thirty days have elapsed since service of the original Notice of Claims, and Defendant CITY has failed to pay or adjust the claim.

23. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

24. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

25. Paragraphs 1-24 are incorporated by reference as fully set forth herein.

26. On September 9, 2016 at approximately 8:30 a.m., inside 635 Andrews Avenue in Bronx County, Defendants KAVY, VASQUEZ and PEREZ along with other NYPD officers wrongfully touched, grabbed, handcuffed and seized MS. HERNANDEZ, in an excessive manner about her person, causing MS. HERNANDEZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch MS. HERNANDEZ. MS. HERNANDEZ was aware of her arrest and confinement as described in paragraphs 1-24, and she did not consent to that arrest or confinement, nor was it privileged by law.

27. On September 9, 2016 at approximately 8:30 a.m., outside 635 Andrews Avenue in Bronx County, Defendants KAVY, VASQUEZ and PEREZ along with other NYPD officers wrongfully touched, grabbed, handcuffed and seized MR. BARTON, in an excessive manner about his person, causing MR. BARTON physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch MR. BARTON. MR. BARTON was aware of his arrest and confinement as described in paragraphs 1-24, and he did not consent to that arrest or confinement, nor was it privileged by law.

28. As a result of being falsely arrested by the Defendants, MS. HERNANDEZ and MR. BARTON sustained multiple injuries. They were denied liberty and the ability to enjoy life for approximately eighteen (18) hours. They also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.

30. The Defendants, their agents, servants and employees, arrested and confined MS. HERNANDEZ and MR. BARTON, as described in paragraphs 1-28, and intended to confine MS. HERNANDEZ and MR. BARTON. MS. HERNANDEZ and MR. BARTON were conscious of their confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

31. As a result of being falsely imprisoned by the Defendants, MS. HERNANDEZ and MR. BARTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

THIRD CAUSE OF ACTION: ASSAULT AND BATTERY

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. On September 9, 2016 at approximately 8:30 a.m., inside 635 Castlehill Avenue in Bronx County, Defendant KAVY, VASQUEZ and PEREZ along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MS. HERNANDEZ and MR. BARTON, in an excessive manner about their person, causing MS. HERNANDEZ and MR. BARTON physical pain and mental suffering.

34. That on or about September 9, 2016, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiffs, MS. HERNANDEZ and MR. BARTON, were intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by KAVY, VASQUEZ and PEREZ, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiffs.

35. That on or about September 9, 2016, KAVY, VASQUEZ and PEREZ, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MS. HERNANDEZ and MR. BARTON, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MS. HERNANDEZ and MR. BARTON and their act caused apprehension of such contact in the plaintiffs, and in a hostile and/or offensive manner intentionally touched the plaintiffs and/or made offensive bodily contact to MS. HERNANDEZ and MR. BARTON and caused such battery in and about their chest, body and limbs. At no time did MS. HERNANDEZ and MR. BARTON consent to the aforesaid assault and battery.

36. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and/or grabbing of MS. HERNANDEZ and MR. BARTON, was an assault and battery beyond that which was necessary to make the arrest.

37. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular KAVY, VASQUEZ and PEREZ, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MS. HERNANDEZ and MR. BARTON suffered bodily injury in and about their body and limbs and suffered conscious pain and suffering, and that they were otherwise damaged.

WHEREFORE, Plaintiffs demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
December 8, 2017

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

VERIFICATION

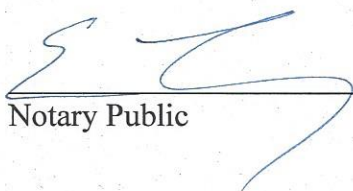
STATE OF NEW YORK)
COUNTY OF BRONX) ss:

BARRINGTON BARTON, being duly sworn, deposes and states that she is the individual Claimant in the within action; that she has read the forgoing Claim and knows the contents thereof; that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters she believes them to be true.



BARRINGTON BARTON

Sworn to before me, this 8th day of December, 2017.



Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

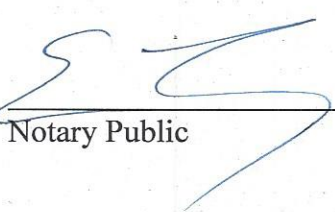
VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

MAJESTY HERNANDEZ, being duly sworn, deposes and states that she is the individual Claimant in the within action; that she has read the forgoing Claim and knows the contents thereof; that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters she believes them to be true.


MAJESTY HERNANDEZ

Sworn to before me, this 8th day of December, 2017.

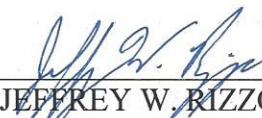


Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


JEFFREY W. RIZZO, ESQ.